

26STCV10053 26STCV10053

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C08%2F24%2F2026

Source SHA-256: 3665774938ea8ca1d6cb9cc9b38147df261dfd63be3a0bce6d9c0682156aeb86

Case Number: 26STCV10053 Hearing Date: August 24, 2026 Dept: 307

11 TENTATIVE RULING 9:00 a.m., Monday, August 24, 2026

CREDITORS

ADJUSTMENT BUREAU, INC. v. SJ CAPITAL INVESTMENTS, INC., et al. [26STCV10053]

DEFENDANT

SUSAN PAK'S MOTION TO QUASH SERVICE OF SUMMONS

TIMELINE:

Breach of commercial lease/guaranty action

3/20/2014: Plaintiff Creditors Adjustment

Bureau, Inc.'s ("Plaintiff") assignor, Bong S. Chang Trustee of the Bong S. Chang Lifetime c/o Realtyland Co., Inc. ("Plaintiff's Assignor") enters into a written lease agreement (the "Lease") with Sang Soon Lee ("Original Tenant") to rent the premises located at 3940 Beverly Blvd., Los Angeles, CA 90004 for a term of five years, commencing 4/1/2014.

1/13/2016: Original Tenant assigns the Lease to

Defendant SJ Capital Investments, Inc. AKA SJ Capital Investments, Inc. AKA SJ Capital Investments DBA Saver Liquor ("SJ Capital").

6/27/2019: Plaintiff's Assignor and SJ Capital

execute a First Amendment to the Lease to extend the Lease term. Defendant Susan Jin Pak AKA Susan J. Pak AKA Susan Sujin Pak ABA Susan S. Pak AKA Susan Pak ("Ms. Pak") executes a Guaranty of the Lease on behalf of SJ Capital.

9/1/2024: SJ Capital allegedly breaches the

Lease by failing to pay rent, damaging Plaintiff's Assignor in the amount of approximately \$322,000.00, plus interest (the "Debt").

3/30/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Breach of Written Contract
2. Breach of Personal Guaranty
3. Open Book Account
4. Account Stated
5. Reasonable Value

6/9/2026:

Plaintiff files a Proof of Service by Substituted Service as to Ms. Pak.

7/1/2026: Ms. Pak files this Motion to Quash

Service of Summons, which is followed by Plaintiff's Opposition (8/11/2026). As of 8/20/2026, the Court has not received a Reply from Ms. Pak.

7/31/2026:

Plaintiff files an amended Proof of Service by Substituted Service as

to Ms. Pak.

TENTATIVE

RULING: DEFENDANT SUSAN PAK'S MOTION TO QUASH SERVICE OF SUMMONS is DENIED.

MOTION TO QUASH SERVICE OF SUMMONS

Ms. Pak moves for an order quashing service of the Summons and the Complaint on the grounds that she was not validly served in compliance with the statutory requirements for substituted service. "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (Summers v. McClanahan, (2006) 140

Cal.App.4th 403, 413; accord *Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991.) "The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements." (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (*Floveyor*)).

Here, Plaintiff

filed an amended Proof of Service as to Ms. Pak on July 31, 2026. (See Proof of Service, 7/31/2026.) Plaintiff's Proof of Service by Substituted Service indicates that Ms. Pak was served by a registered process server on May 24, 2026 at 1133 S. Hoover St., #420 Los Angeles, CA 90006 by leaving the process documents with Myung "Ben" Pak, who is purported to be Ms. Pak's father and a co-occupant of the residence. (*Ibid.*) The process server subsequently mailed copies of the process documents to the same address on the same date. (*Ibid.*) Additionally, the process server submits a declaration of diligence indicating that he made ten separate attempts to serve Ms. Pak, including one attempt when the process server was specifically advised by a tenant that Ms. Pak lived in Unit 420. (*Ibid.*) This Proof of Service, which ostensibly demonstrates compliance with Code of Civil Procedure section 415.20, creates a rebuttable presumption of valid substituted service on Ms. Pak. (See *Floveyor*, *supra*, 59 Cal.App.4th at p. 795.)

Plaintiff argues that substituted service was not valid because the alleged substituted service was not effectuated at a proper place and the individual identified in Plaintiff's Proof of Service did not have authority to accept service on Ms. Pak's behalf. (*Mot.*, at p. 4.) Specifically, Plaintiff declares that 1133 S. Hoover St. is and has never been her residence and "Ben" Pak is not her father's name, nor does she know of any "Ben" Park. (*Pak Decl.*, ¶¶ 3-4.) Ms. Pak also denies that she has any co-residents who could accept service on her behalf at her residence. (*Id.* ¶ 5.) Ms. Pak denies that she received copies of the Summons or the Complaint at or near the time of the purported service. (*Id.* ¶ 6.) Notably, while Ms. Pak denies that she resides at 1133 S. Hoover St., she does not offer evidence confirming an alternate residential address. Ms. Pak's declaration is also entirely silent as to whether she is related to an individual by the legal name of Myung Pak, as identified in the Proof of Service. These omissions raise questions about Ms. Pak's credibility as a witness.

The Court finds that Plaintiff's minimal

declaration is insufficient to rebut the presumption of valid substituted service created by Plaintiff's Proof of Service, which is further bolstered by Plaintiff's evidence in support of this motion to quash. Plaintiff submits a copy of an investigative report reflecting Ms. Pak's address at 1133 S. Hoover St.. (Frischer Decl., Exh. 1.) Plaintiff also submits a supplemental declaration from the registered process server, John Martinez. Mr. Martinez declares that on the date of service, he went to Unit 420 and "an older Asian gentleman opened the door and identified himself as Susan Pak's father, Ben Pak," whose legal name is Myung Pak. (Martinez Decl., ¶ 3.) Mr. Martinez describes Mr. Pak as an "Asian Male, 65 years old, 5'5", 130 lbs, with black hair." (Ibid.) Because Ms. Pak has not filed any Reply, she has not disputed this identification. Mr. Martinez's declaration offers strong evidence that the individual served on behalf of Ms. Pak understood that he was a household member of Ms. Pak and confirmed Ms. Pak's connection to the residence.

In light of the apparent contradiction between Ms. Pak's declaration and Plaintiff's evidence, the Court notes that "a trial court is not required to accept the truth of a self-serving declaration that contradicts the process server's declaration." (Rodriguez v. Cho (2015) 236 Cal.App.4th 742, 751.) The affidavit of a registered process server, which recites the facts in unequivocal terms, considered together with other evidence which tends to prove that the defendant had been evading service, constitutes "substantial evidence" to support the denial of a motion to quash service, even where the defendant submits a conflicting affidavit. (Thorndyke v. Jenkins (1943) 61 Cal.App.2d 119, 121.) In this case, Ms. Pak's declaration is indeed self-serving and the omissions of material facts which would support her position substantially reduce the reliability of her declaration in comparison to that of Mr. Martinez. Accordingly, the Court finds that the weight of the evidence favors Plaintiff and demonstrates by a preponderance of the evidence that Ms. Pak was validly served by substituted service on May 24, 2026, consistent with the facts recited in Plaintiff's Proof of Service.

Therefore, Ms. Pak's Motion to Quash Service of Summons is DENIED.

Defendant Susan J. Pak to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR

emailed to counsel and posted